

Cal.App.4th 1051, 1076.) There is nothing in the clause at issue which would limit attorney fees to purely contractual claims.

Unjust Enrichment

Plaintiff's theory as to why it is entitled to attorney fees on the unjust enrichment cause of action is a bit unclear. His opposition is similar to that of the demurrer wherein he argues that the cause of action is properly stated. While the Court agreed that the unjust enrichment cause is properly stated (see line 13), this does not explain why Plaintiff would be entitled to attorney fees.

The unjust enrichment claim is an equitable claim that cannot rely upon a contract. "As a matter of law, an unjust enrichment claim does not lie where the parties have an enforceable express contract." (*Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1370 citing *California Medical Assn. v. Aetna U.S. Healthcare of California, Inc.* (2001) 94 Cal.App.4th 151, 172.) Since there cannot be a contract at issue for the unjust enrichment cause of action to stand, there cannot be a contract which allows for an award of attorneys' fees related to such a claim.

Conclusion

Based on the above, Defendant's motion is:

- **GRANTED** as to the allegations relating to punitive damages;
- **DENIED** as to the request for attorneys' fees on the second cause of action for intentional interference with contractual relations; and
- **GRANTED** as to the request for attorneys' fees on the third cause of action for unjust enrichment.

Plaintiff is granted leave to amend regarding the request for punitive damages as to the interference claim only. Leave is denied as to the request for attorneys' fees on the unjust enrichment cause of action.

15. 9:00 AM CASE NUMBER: C25-02383
CASE NAME: IVORY EVANS VS. SUNIL YADAV
HEARING ON DEMURRER TO: 1ST, 2ND, 4TH, AND 5TH CAUSES OF ACTION OF PLAINTIFF'S COMPLAINT
FILED BY: YADAV, SUNIL L.
TENTATIVE RULING:

Defendant Sunil L. Yadav ("Defendant") filed a Demurrer to plaintiff Ivory Evans' ("Plaintiff") Complaint on November 26, 2025 (the "Demurrer"). The Demurrer was set for hearing on April 13, 2026.

Background and Analysis

No opposition was filed. However, Plaintiff filed a First Amended Complaint on March 30, 2026.

A party may amend its pleading once without leave of the court at any time before the answer,

demurrer, or motion to strike is filed, or **after a demurrer** or motion to strike **is filed but before the demurrer** or motion to strike **is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer** or motion to strike. Code Civ. Proc. § 472(a).

When the plaintiff files an amended complaint in response to a defendant's demurrer before the hearing on the demurrer, that hearing should be taken off calendar because the amended complaint supersedes the complaint to which the demurrer was directed. *People ex rel. Strathmann v. Acacia Research Corp.* (2012) 210 Cal.App.4th 487, 506; see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) ("CJER Civ. Pro.—Before Trial"), § 12.11.

Accordingly, the Court orders the Demurrer off-calendar as moot in light of the amended complaint.

Disposition

The Court finds and orders as follows:

1. The Demurrer is ordered OFF-CALENDAR as moot.
2. The Court shall issue the order after hearing.

16. 9:00 AM CASE NUMBER: C25-02627

CASE NAME: JAMES BREEN VS. HEATHER BREEN

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: BREEN, HEATHER

TENTATIVE RULING:

The demurrer of Defendants Heather Breen and Adrienne Slavens to the complaint of Plaintiff James Breen is **SUSTAINED WITHOUT LEAVE TO AMEND.**

Background

This case arises from the dissolution of the marriage of Plaintiff James Breen and Defendant Heather Breen, and the domestic conflict that preceded and accompanied it. Plaintiff seeks monetary damages against Heather and her mother Adrienne Slavens (Adrienne), alleging that their conduct during the parties' separation in 2023 constituted intentional infliction of emotional distress. (Complaint, p. 1:21-22.)

Plaintiff makes the following allegations. From January 2023 to July 2023, Heather Breen exerted "coercive control over the parties' small shared two-bedroom apartment. Her undiagnosed sound sensitivity disorder made it difficult for her to be in the same room with him. She was sensitive to every sound including chewing and typing and would not allow him to be in the small kitchen at the same time as her because his presence bothered her. (*Id.* ¶ 2.)

During this same period, Heather Breen controlled the couple's finances and gave Plaintiff an allowance of \$1,000 dollars a month. When he went over, she would berate him and tell him he was spending too much. (*Id.* ¶ 3.)

Heather would isolate herself in a bedroom where she slept with Clara, their eleven year old daughter who has special needs. Due to her sound sensitivity disorder, Heather was bothered by his presence.